

		13, 2023, Defendants filed an Amended Answer to Plaintiff's Complaint, (ROA 26), and served the same on September 15, 2023 (ROA 28). Defendants to give notice.
10	White vs. Bella Terra Pad, LLC. 2020-01174798	Motion to Be Relieved as Counsel of Record filed by counsel for Blair White on 8/24/23 The Motion to Be Relieved as Counsel of Record filed by Raymond Ghermezian, Esq., Counsel of Record for Plaintiff, Blair White, is GRANTED on the condition that Moving Counsel submit an updated Proposed Order. Motions to be relieved as counsel pursuant to Code of Civil Procedure section 284(2) are governed by California Rules of Court, Rule 3.1362. All of the requirements of California Rules of Court, Rule 3.1362 have been sufficiently met. Moving Counsel has utilized the requisite Judicial Council Forms (MC-051, MC-052, and MC-053), has filed the Proposed Order, has served all parties and the client and has demonstrated adequate grounds for granting the motion. Moving Counsel states: There has been irreconcilable differences of opinion between Plaintiff and Plaintiff's counsel leading to a complete breakdown in the attorney-client relationship. Specifically, certain significant issues surfaced related to the prosecution of this case, which to date remain unresolved. Current counsel and

plaintiff are at an impasse with respect to these issues. Consequently, a dispute has arisen as to whether plaintiff's counsel can proceed as attorney of record. The issues in question are fundamental and crucial to the outcome of this case. Therefore, it is respectfully submitted that attorneys be relieved as counsel of record due to Justifiable cause. Present counsel has informed Plaintiff of this position and have requested Plaintiff agree to relieve counsel due to Justifiable cause. Plaintiff, however, has been unresponsive to this request, thereby requiring the instant motion. Ghermezian Decl., ¶ 2, MC-052.

Notwithstanding the foregoing, the Court notes that subsequent to filing of the instant motion, a motion for terminating sanctions was filed that has a hearing date set for October 16, 2023.

The order relieving counsel, Raymond Ghermezian, as Counsel of Record for Plaintiff, Blair White, is effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. Cal. Rules of Court, rule 3.1362(e).

By the time of the hearing on the instant motion to be relieved, Moving Counsel is to lodge an updated Proposed Order that reflects all currently pending hearing dates, as well as the Court's order above in paragraph 5 of the Proposed Order.

Moving Counsel to give notice.